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File No.: EXP202212525

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by B.B.B. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated January 19, 2024, and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant), on November 17, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that they are a neighbor of the respondent and that the respondent has installed a video surveillance system on the façade of their home which, due to the location and orientation of the cameras, is capable of capturing images of the complainant's home.

The complainant provides images of the camera locations and a burofax sent to the respondent urging the removal or reorientation of the cameras.

The documents provided are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On December 9, 2022, and February 7, 2023, this Agency received written responses indicating that the processing of the images captured/recorded by the cameras subject to the complaint is a domestic processing as it only captures their property.

Notwithstanding the above, upon analyzing the images from the cameras' field of view, it is confirmed that it includes areas outside the respondent's property, therefore the domestic processing cannot be taken into account, and the subject of this complaint falls within the competence of this Agency.

THIRD: On February 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which, in summary, stated:

"... I proceed to clarify the error in the attachments to the communication sent by me on February 7, 2023. (...) not understanding why, after having promptly responded in writing to the requests of the AEPD on December 9, 2022, and February 7, 2023. (...) after accessing the information in the file, it is brought to our attention that apparently the information sent with photographs of the 3 cameras on February 7, 2023, is incorrect, being the same as those sent on December 9, 2022, and the correct ones, already reoriented at that time, have not been attached, which I have had the opportunity to show. (...) I apologize for the telematic error made and attach the photographs from February 7, 2023. Notwithstanding the above, acting in good faith, and to be able to conclude this matter, I proceed to reorient again as of today, April 25, 2023, the camera accessing my home."

SIXTH: On October 3, 2023, a resolution proposal was made, proposing to the Director of the Spanish

Agency for Data Protection the filing of the complaint filed against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SEVENTH: After notifying the resolution proposal on October 3, 2023, and the period granted for allegations having elapsed, no allegations have been presented regarding said proposal.

EIGHTH: On December 20, 2023, a Note from the Director was notified to the respondent, in which it stated the following:

“In view of the proven facts and by virtue of the power granted by the preceding articles cited, I consider that from the proven facts, the infringement of Article 5.1.c) of the GDPR is extracted.”

NINTH: On December 29, the respondent submitted allegations to the Director's Note, in which, in summary, indicated:

“As stated in the first written response to this Agency dated February 7, 2023, as soon as knowledge of the complaint regarding the location...

3/7

of the cameras, these were reoriented, acting from the very beginning with total transparency, providing images that corresponded entirely with reality and responding to the Agency's requirements in a timely manner. In this way, the cameras were reoriented in compliance with data protection regulations following the Agency's own guidelines on the matter through its “Guide on the Use of Video Cameras for Security and Other Purposes,” for which photographic evidence was presented, in contrast to the photographs submitted by the claimant. However, as noted in this file, once the cameras were reoriented, photos were initially provided that did not show the actual situation, and after becoming aware of the telematic error, updated images were sent again with the reoriented cameras, which since February 7, 2023, did not capture any residual images outside the home, as can be seen in the date of the images attached to this submission (see Annex 01).

As derived from the facts and this regulation, the responding party adopted the measures indicated by the Agency on February 7, 2023, and before the opening of the sanctioning procedure file, the corrective measures indicated by the Agency had already been adopted, causing no harm to the claimant as stated in the file, and the right regarding their personal data is fully guaranteed as indicated, fully complying with the requirements of this article related to the admission of claims, reaffirming the criteria applied to the Agency's Resolution Proposal of October 3, 2023.

Furthermore, regarding the considerations that must be taken into account when determining the application of a fine, the LOPDGDD in its article 76.2 in direct reference to article 83.2 of the aforementioned RGPD and in particular letter k) thereof, regarding any other aggravating or mitigating factor, incorporates within the national regulation letters a), b), and c), which are applicable to the case.

TENTH: On January 19, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection imposing on B.B.B., with NIF ***NIF.1, for an infringement of article 5.1.c) of the RGPD, classified under article 83.5.a) of the cited RGPD, a fine of 300 euros (THREE HUNDRED EUROS).

ELEVENTH: Once the aforementioned resolution was notified in accordance with the rules established in the LPACAP, the responding party filed a motion for reconsideration, within the legally established timeframe, in which, in summary, it states that:

- In its first allegation, it insists that the camera did not capture the claimant's home. To substantiate this fact, it again submits a photograph dated December 9, 2022.
- In the second allegation, it refers to the fact that the captured spaces correspond to the adjacent external plot bordering the claimant's home, which it claims does not have “public access” and is “fenced along its entire perimeter.”
- In its third allegation, it states that the purpose of the cameras outside the home is to protect the family and the minors residing therein, therefore the processing of personal data is carried out in accordance with the provisions of article 22 of the LOPDGDD.

C/ Jorge Juan, 6

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- In the fourth allegation, it clarifies that the captured images are “adequate, relevant, and limited” to what is necessary in relation to the purposes for the processing, the notice of access by individuals outside the home. It accompanies its allegation, once again, with another of the photographs dated December 9, 2022, which was previously submitted to this Agency.
- Finally, it asserts that it proceeded to reorient the cameras on February 7, 2023, and makes another series of considerations unrelated to the sanctioning procedure whose resolution is the subject of appeal regarding its disagreements with the claiming party.

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds of the contested resolution

In relation to the statements made in the appeal, which basically reiterate those already made throughout the processing of the sanctioning procedure PS/00121/2023, it should be noted that they have already been analyzed and dismissed in the contested resolution, whose grounds remain fully valid.

In this regard, it is worth reiterating that Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities. Notwithstanding the above, as indicated in the contested resolution, the processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, the infringement of which was attributed in the contested resolution, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.” This means that in a specific processing, only the pertinent personal data that are relevant and strictly necessary may be processed.

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to fulfill the purpose for which they are processed. The processing must be adjusted and proportional to the purpose it is directed towards.

Consequently, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Bodies.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities. Under no circumstances will

the use of surveillance practices beyond the area subject to installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras cannot capture images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

Thus, the above also applies to the parcel adjacent to that of the appellant even though they indicate that it "is completely fenced off" and does not allow the passage of people.

In summary, it should be emphasized that in the sanctioning procedure, the appellant provided images from the field of view of the cameras, dated 09/12/2022 (now reiterated in the appeal phase) and others dated 07/02/2023, (first presented to this Agency once notified of the initiation agreement of the sanctioning procedure), confirming that these include areas outside the property of the appellant. Therefore, it can be stated that the infringement for which the sanction being appealed was imposed occurred, and that the alleged reorientation of the cameras was not evidenced before this Agency until after the corresponding sanctioning procedure was initiated.

In this regard, the fact that, once the sanctioning procedure was initiated and the initiation agreement was notified on April 24, 2023, images of the reoriented cameras in compliance with personal data protection regulations were provided on April 25, 2023, does not imply that an infringement has not been committed, but rather that the reorientation of the cameras would only have the effect of eliminating the need to order a corrective measure for the proper compliance with data protection regulations.

III

Conclusion

Therefore, given that in the present appeal for reconsideration, no new facts or legal arguments have been presented that would allow for a reconsideration of the validity of the contested resolution, and that the purpose of the appeal is to review the legality of the administrative action, it is appropriate to agree to its dismissal, without prejudice to the fact that the appellant may file a new complaint providing copies of all relevant documents they possess, in relation to a possible infringement within the Agency's jurisdiction.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date hereof, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their form of initiation, as provided in Article 21.1 of the aforementioned LPACAP.

In cases of dismissal by administrative silence, the express resolution after the expiration of the deadline will be adopted by the Administration without any binding effect on the meaning of the silence, as provided in Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Considering the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by B.B.B. against the Resolution of this Spanish Agency for Data Protection issued on January 19, 2024, agreeing to the inadmissibility of the complaint in file no. EXP202212525.

SECOND: TO NOTIFY this resolution to B.B.B.

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7/7

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within a period of two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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